

SENATE BILL 1259

By Yarbro

AN ACT to amend Tennessee Code Annotated, Title 36;
Title 37 and Title 39, relative to child neglect.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 37-1-102(b), is amended by adding the following as a new subdivision:

() "Neglect" does not include permitting a child, whose basic needs are met and who is of sufficient age and maturity to avoid harm or unreasonable risk of harm, to engage in independent activities, including, but not limited to:

- (A) Traveling to and from school, including by walking, running, or bicycling;
- (B) Traveling to and from nearby commercial or recreational facilities;
- (C) Playing outdoors;
- (D) Remaining at home unattended for a reasonable period of time; and
- (E) Other similar independent activity;

SECTION 2. Tennessee Code Annotated, Section 39-15-401, is amended by adding the following as a new subsection:

(j) As used in this section, "neglect" does not include permitting a child, whose basic needs are met and who is of sufficient age and maturity to avoid harm or unreasonable risk of harm, to engage in independent activities, including, but not limited to:

- (1) Traveling to and from school, including by walking, running, or bicycling;

- (2) Traveling to and from nearby commercial or recreational facilities;
- (3) Playing outdoors;
- (4) Remaining at home unattended for a reasonable period of time; and
- (5) Other similar independent activity.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.